

ITC(HS), 2022

Schedule 1 Import Policy

Section XXI, WORKS OF ART, COLLECTORS' PIECES AND ANTIQUES

Main Notes			
Sl.No.	Notes	Notification No.	Notification Date
1	This Chapter does not cover : (a) unused postage or revenue stamps, postal stationery (stamped paper) or the like of heading 4907; (b) theatrical scenery, studio back-cloths and the like, of painted canvas (heading 5907) except if they may be classified in heading 9706; or (c) pearls, natural or cultured, or precious or semi-precious stones (headings 7101 to 7103).		
2	Heading 9701 does not apply to mosaics that are mass-produced reproductions, casts or works of conventional craftsmanship of a commercial character, even if these articles are designed or created by artists.	Notification No. 54/2015-2020	09.02.2022
3	For the purposes of heading 9702, the expression "original engravings, prints and lithographs" means impressions produced directly, in black and white, or in colour, of one or of several plates wholly executed by hand by the artist, irrespective of the process or of the material employed by him, but not including any mechanical or photomechanical process.		
4	Heading 9703 does not apply to mass-produced reproductions or works of conventional craftsmanship of a commercial character, even if these articles are designed or created by artists.		
5	(A) Subject to Notes 1 to 3 above, articles of this Chapter are to be classified in this Chapter and not in any other Chapter of this Schedule. (B) Heading 9706 does not apply to articles of the preceding headings of this Chapter.		
6	Frames around paintings, drawings, pastels, collages or similarly decorative plaques, engravings, prints or lithographs are to be classified with those articles, provided they are of a kind and of a value normal to those articles. Frames which are not of kind or of a value normal to the articles		

	referred to in this Note are to be classified separately.		
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Chapter 98 Project Imports; Laboratory Chemicals; Passengers Baggage, Personal Implementations By Air Or Post; Ship Stores

Main Notes			
Sl.No.	Notes	Notification No.	Notification Date
1	This Chapter is to be taken to apply to all goods which satisfy the conditions prescribed therein, even though they may be covered by a more specific heading elsewhere in this Schedule.		
2	Heading 9801 is to be taken to apply to all goods which are imported in accordance with the regulations made under section 157 of the Customs Act, 1962 (52 of 1962) and expressions used in this heading shall have the meaning assigned to them in the said regulations.		
3	Heading 9802 covers all chemicals, organic or inorganic, whether or not chemically defined, imported in packings not exceeding 500 gms or 500 millilitres and which can be identified with reference to the purity, markings or other features to show them to be meant for use solely as laboratory chemicals.		
4	Headings 9803 and 9804 are taken not to apply to : (a) motor vehicles; (b) alcoholic beverages; and (c) tobacco and manufactured products thereof.	Notification No. 16/2015-2020	07/12/2017
5	Heading 9803 is to be taken not to apply to articles imported by a passenger or a member of a crew under an import licence or a Customs Clearance Permit either for his own use or on behalf of others.		
6	Heading 9804 is to be taken not to apply to articles imported under an import licence or a Customs Clearance Permit.		

7	Heading 9804 is to be taken not to apply to printed books.		
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Product Description and Import Policy					
HS Code	Description	Import Policy	Policy Condition	Notification No.	Notification Date
9801	All items of machinery including prime movers, instruments, apparatus and appliances, control gear and transmission equipment, auxiliary equipment (including those required for research and development purposes, testing and quality control), as well as all components (whether finished or not) or raw materials for the manufacture of the aforesaid items and their components, required for the initial setting up of a unit, or the substantial expansion of an existing unit, of a specified: (1) Industrial plant, (2) Irrigation project, (3) Power project, other than solar power plant or solar power project, (4) Mining project, (5) Project for the exploration for oil or other minerals, and (6) Such other projects, other than solar power plant or solar power project, as the central government may, having regard to the economic development of the country notify in the official gazette in				

this behalf; and spare parts, other raw materials (including semi-finished material) or consumable stores not exceeding 10% of the value of the goods specified above provided that such spare parts, raw materials or consumable stores are essential for the maintenance of the plant or project mentioned in (1) to (6) above.

980100

All items of machinery including prime movers, instruments, apparatus and appliances, control gear and transmission equipment, auxiliary equipment (including those required for research and development purposes, testing and quality control), as well as all components (whether finished or not) or raw materials for the manufacture of the aforesaid items and their components, required for the initial setting up of a unit, or the substantial expansion of an existing unit, of a specified:

- (1) industrial plant,
- (2) irrigation project,
- (3) Power project, other than solar power plant or solar power project,
- (4) mining project,
- (5) project for the exploration for oil or other minerals, and

		(6) such other projects, other than solar power plant or solar power project, as the Central Government may, having regard to the economic development of the country notify in the Official Gazette in this behalf; and spare parts, other raw materials (including semi- finished materials of consumable stores) not exceeding 10% of the value of the goods specified above, provided that such spare parts, raw materials or consumable stores are essential for the maintenance of the plant or project mentioned in (1) to (6) above:	
98010011	---	Machinery: ----For industrial plant project	Free
98010012	---	Machinery: ----For irrigation plant	Free
98010013	----	For power project, other than solar power plant or solar power project	Free
98010014	---	Machinery: ----For mining project	Free
98010015	---	Machinery: ----Project for exploration of oil or other minerals	Free
98010019	----	For other projects, other than	Free

		solar power plant or solar power project				
98010020	---	Machinery: ----Components (whether finished or not) or raw materials for the manufacture of aforesaid items and their components required for the initial setting up of a unit or the substantial expansion of a unit	Free			
98010030	---	Machinery: ----Spare parts and other raw materials (including semi-finished materials) or consumable stores for the maintenance of plant or project	Free			
98020000	---	Laboratory Chemicals	Free			
98030000	---	All dutiable articles, imported by a passenger or a member of a crew in his baggage	Restricted	As provided under Customs and Baggage Rules by saving clause 3(1)(h) of Foreign Trade (Exemption from Application of Rules in Certain Cases) Order, 1993		
9804		All Dutiable Articles, Intended For Personal Use, Imported By Post Or Air, And Exempted From Any Prohibition In Respect Of The Imports Thereof Under The Foreign Trade (Development and				
98041000	---	Drugs and medicines	Free	Subject to conditions specified by DGHS.	16/2015-2020	12/07/2017
98049000	---	Other	Free	Subject to such conditions as	16/2015-2020	12/07/2017

contained in the Foreign Trade Policy						
9805	The Following Articles Of Stores On Board Of A Vessel Or Aircraft On Which Duty Is Leviable Under The Customs Act, 1962 (52 Of 1962) Namely:					
98051000	---	Prepared or preserved meat, fish and vegetables; dairy products; soup; lard; fresh fruits	Free	Subject to such conditions as contained in the Foreign Trade Policy	16/2015-2020	12/07/2017
98059000	---	All other consumable stores excluding fuel, lubricating oil, alcoholic drinks and tobacco products	Free	Subject to such conditions as contained in the Foreign Trade Policy	16/2015-2020	12/07/2017
98089299	--- Other: ---- Other					